[Public Land Order 1435]

[62646]

FLORIDA

RESERVING PUBLIC LANDS AS ADDITION TO NATIONAL KEY DEER REFUGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Monroe County, Florida, are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws, and reserved as an addition to the National Key Deer Refuge, which was established by the act of July 31, 1953 (67 Stat. 261, 272):

TALLAHASSEE MERIDIAN

T. 66 S., R. 28 E.,
Sec. 27, lot 5.

The area described contains 0.59 acre.

HATFIELD CHILSON,
Under Secretary of the Interior.

JUNE 17, 1957.

[F. R. Doc. 57-5094; Filed, June 21, 1957; 8:45 a. m.]

[Public Land Order 1436]

[55724]

WASHINGTON

POWER SITE RESTORATION NO. 514; PARTIALLY REVOKING EXECUTIVE ORDERS OF JULY 2, 1910 AND JANUARY 3, 1917, WHICH CREATED POWER SITE RESERVES NO. 129 AND NO. 564, RESPECTIVELY; PARTIALLY REVOKING DEPARTMENTAL ORDER OF JANUARY 15, 1945, WHICH CREATED POWER SITE RESERVE NO. 764

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive orders of July 2, 1910 and January 3, 1917, reserving certain lands in Washington for water-power sites as Power Site Reserves No. 129 and No. 564, respectively, are hereby revoked so far as they affect the following-described lands:

(a) Executive Order of July 2, 1910:

[Power Site Reserve No. 129]

WILLAMETTE MERIDIAN

T. 30 N., R. 26 E.,
Sec. 35, NE¼SE¼ and SW¼SE¼.
T. 30 N., R. 28 E.,
Sec. 10, SW¼SW¼;
Sec. 16, NW¼NE¼;
Sec. 32, SW¼SE¼.
T. 30 N., R. 30 E.,
Sec. 27, SW¼NE¼.

The areas described aggregate 240 acres.

(b) Executive Order of January 3, 1917:

[Power Site Reserve No. 564]

WILLAMETTE MERIDIAN

T. 30 N., R. 26 E.,
Sec. 26, NW¼NE¼.

The area described contains 40 acres.

2. The departmental order of January 15, 1945, creating Indian Power Site Reserve No. 764, is hereby revoked so far as it affects the following-described lands:

WILLAMETTE MERIDIAN

T. 30 N., R. 26 E.,
Sec. 23, SE¼NE¼, NE¼SE¼, and W½SE¼;
Sec. 24, NW¼NE¼ and NW¼.
T. 30 N., R. 27 E.,
Sec. 20, NE¼SE¼;
Sec. 27, NE¼SE¼;
Sec. 35, NE¼NW¼.
T. 30 N., R. 28 E.,
Sec. 17, NW¼NE¼, NE¼NW¼, and S½NW¼;
Sec. 20, SW¼NW¼ and NW¼SW¼;
Sec. 31, lots 1, 2, and E½NW¼.
T. 30 N., R. 30 E.,
Sec. 26, NW¼NE¼ and NE¼SE¼.
T. 31 N., R. 30 E.,
Sec. 31, lot 1, N½NE¼, SE¼NE¼, and NE¼NW¼;
Sec. 31, N½N½;
Sec. 33, SW¼NE¼, NW¼NW¼, and SE¼NW¼;
Sec. 34, NW¼SW¼, SE¼SW¼, and W½SW¼SE¼.

The areas described aggregate 1,540 acres.

3. The lands described in paragraphs 1 (b) and 2 of this order are within the boundaries of the Colville Indian Reservation.

4. The following-described lands have been patented without a reservation of minerals to the United States:

WILLAMETTE MERIDIAN

T. 30 N., R. 28 E.,
Sec. 10, SW¼SW¼;
Sec. 32, SW¼SE¼.
T. 30 N., R. 30 E.,
Sec. 27, SW¼NE¼.

The areas described aggregate 120 acres.

5. The NW¼NE¼, sec. 16, T. 30 N., R. 28 E., is State school land. The NE¼SE¼ and SW¼SE¼, sec. 35, T. 30 N., R. 26 E., is vacant public domain and lies about ¼ mile from the Columbia River. The lands are inaccessible due to lack of roads in the area. The topography is a gentle north slope, and the soil is a shallow, rocky brown silty clay loam. Vegetation consists of sagebrush, blue bunch wheatgrass, Sandberg bluegrass, cheat, and annual weeds. The only present and potential use of the lands is for grazing livestock.

6. No application for the public lands described in paragraph 5 of this order may be allowed under the homestead, desert land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

7. Subject to any existing valid rights and the requirements of applicable law, the public lands described in paragraph 5 of this order are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m., on July 23, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on October 22, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on October 22, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands have been open to applications and offers under the mineral-leasing laws. They also have been open to location under the U. S. mining laws pursuant to the provisions of the act of August 11, 1955 (69 Stat. 683; 30 U. S. C. 621).

8. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing application which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

9. The public lands released from withdrawal by this order shall be subject, until 10:00 a. m., on October 22, 1957, to application by the State of Washington, under any statute or regulation applicable thereto, for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818) as amended.

This order shall be known as Power Site Restoration No. 514.

Inquiries concerning the lands shall be addressed to the Manager, Land

Office, Bureau of Land Management, Spokane, Washington.

HATFIELD CHILSON,
Under Secretary of the Interior.

JUNE 17, 1957.

[F. R. Doc. 57-5095; Filed, June 21, 1957; 8:45 a. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

Chapter I—Veterans Administration

PART 17—MEDICAL

PAYMENT OF FEDERAL AID; CHANGE IN EFFECTIVE DATE

The effective date of § 17.165, published in 22 F. R. 4193 is changed from June 14, 1957 to August 1, 1957.

[SEAL] H. V. HIGLEY,
Administrator of Veterans' Affairs.

[F. R. Doc. 57-5118; Filed, June 21, 1957; 8:51 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter C—Management of Wildlife Conservation Areas

PART 17—LIST OF AREAS

NATIONAL WILDLIFE REFUGES

CROSS REFERENCE: For order reserving certain lands as an addition to the National Key Deer Refuge (§ 17.3) see Public Land Order 1435 in the Appendix to Title 43, Chapter I, *supra*.

Subchapter F—Alaska Commercial Fisheries

PART 109—COOK INLET AREA

PART 122—SOUTHEASTERN ALASKA AREA, CLARENCE STRAIT DISTRICT, SALMON FISHERIES

MISCELLANEOUS AMENDMENTS

Basis and purpose. One company in Southeastern Alaska has requested a substitution of one of their trap sites for another now closed. No increase in fishing effectiveness will result.

An operator in the Cook Inlet Area has agreed to temporary closure of his trap site in the interests of the conservation program there. Therefore, effective immediately upon publication in the FEDERAL REGISTER:

1. Section 109.15a is amended by deleting subparagraph (2) of paragraph (b).

2. Paragraph (p) (1) of § 122.8 is amended to read as follows:

(1) Within 2,500 feet of a point at 55 degrees 2 minutes 47 seconds north latitude.

These changes shall be effective only through December 31, 1957.

Since immediate action is necessary, notice and public procedure on these amendments are impracticable.

(Sec. 1, 43 Stat. 464, as amended; 48 U. S. C. 221)

D. L. MCKERNAN,
Director,
Bureau of Commercial Fisheries.

JUNE 19, 1957.

[F. R. Doc. 57-5145; Filed, June 20, 1957; 4:43 p. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 966]

[Docket No. AO-257-A3]

MILK IN SHREVEPORT, LA., MARKETING AREA

DECISION WITH RESPECT TO PROPOSED TENTATIVE MARKETING AGREEMENT AND TO ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted at Shreveport, Louisiana, February 4–5, 1957 (22 F. R. 568), upon a proposed tentative marketing agreement and order, as amended, regulating the handling of milk in the Shreveport, Louisiana, marketing area.

Upon the basis of the evidence introduced at the hearing, and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on June 10, 1957, filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision. Said decision, containing notice of opportunity to file written exceptions thereto was published in the FEDERAL REGISTER on June 13, 1957 (22 F. R. 4161).

Within the period reserved therefor, interested persons filed exceptions to certain of the findings, conclusions and actions recommended by the Deputy Administrator. In arriving at the findings, conclusions, and regulatory provisions of this decision, each of such exceptions was carefully and fully considered in conjunction with the record evidence pertaining thereto.

To the extent that suggested findings and conclusions proposed by interested persons are inconsistent with the findings and conclusions contained herein, the specific or implied requests to make such findings and reach such conclusions are denied on the basis of the facts found and stated in connection with the conclusions herein set forth.

Preliminary statement. The hearing, on the record of which the proposed amendments to the tentative marketing agreement and to the order, as amended, were formulated, was conducted at Shreveport, Louisiana, on February 4–5, 1957 (22 F. R. 568). The material issues of record related to:

1. Distributing plant definition.
2. Supply plant definition.
3. A new definition providing for "associated producer".
4. The level of the Class I milk price.
5. The level of the Class II milk price.
6. A new provision establishing a "shrink milk price".
7. The computation of daily average bases for producers.
8. A new provision for the use of "equivalent prices".

Findings and conclusions. By an expedited decision of the Assistant Secretary, issued April 4, 1957 (22 F. R. 2347), action has been taken with respect to Issue No. 3. Findings and conclusions with respect to the remaining material issues, all of which are based on the evidence introduced at the hearing, and the record thereof, are as follows:

1. *The distributing plant definition should not be amended.* Producers proposed that the "distributing plant" definition be amended to qualify a plant as a distributing plant if, during any month, it distributes a volume of Class I milk equal to an average of 1,500 pounds per day, or not less than four percent of the total volume of Class I milk of such plant is disposed of through routes operating wholly or partially in the marketing area.

The present distributing plant definition contains the same quantity factors as does the proposal. But, the percentage factor is presently applied to the total milk received from producers and other plants. The proposal would apply the factor to the total disposition of Class I milk from such plant. If the distributing plant standard were based on the percentage of a plant's total Class I sales which were distributed in the marketing area, it would be possible to regulate a plant that had only a fraction of its total receipts in Class I. The present order language measures more effectively the relative Class I milk operations of a plant than would the method contained in the proposal.

Further, the present definition counts only the volume of milk disposed of within the marketing area to determine whether a plant qualifies as a distributing plant; while the proposal would count the total Class I disposition from an entire route if some of the milk is distributed in the marketing area from such route. The Northwest Louisiana Pure Milk Producers' Association contended that present order language would permit unregulated handlers to increase their business inside the marketing area without incurring regulation. Handlers could do this by increasing receipts of milk at a plant so that a corresponding increase of Class I sales in the marketing area does not exceed four percent of the total milk receipts at the plant.

But, this appears to overlook the alternative quantitative factor for identifying a distributing plant that is now contained in the order. As the order is now written, a plant may qualify as a distributing plant if it distributes an